



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

April 05, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 15393
(FOURTH REVISION)

EXPIRATION DATE: 2026-03-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Southern States Chemical, Inc.
Savannah, GA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of sulfuric acid in tanks cars that have undergone an alternative pre-trip inspection procedure. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Party status will not be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.31(d)(1)(vi) in that an alternative pre-trip inspection procedure is authorized as provided herein.
5. BASIS: This special permit is based on the application of Southern States Chemical, Inc. dated October 8, 2021 submitted in accordance with § 107.109.

Tracking Number: 2021104531

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Sulfuric acid with more than 51 percent acid	8	UN1830	II

7. SAFETY CONTROL MEASURES:

- a. PACKAGING: DOT specification tank cars authorized by the Hazardous Materials Regulations for use in the shipment of sulfuric acid with more than 51 percent acid (UN1830).
- b. OPERATIONAL CONTROLS: Prior to offering, a visual inspection of each car must be conducted in accordance with 173.31(d)(1)(vi) to visually inspect the top side of the rupture disc and pressure test each tank car prior to shipment at a pressure of 20 psig for a period of 10 minutes to verify the integrity of the rupture disc.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail Freight.10. MODAL REQUIREMENTS:

- a. A current copy of this special permit must be maintained at the facility named on this special permit that loads packages covered by this special permit. The shipper must furnish a copy of this special permit to the rail carrier before, or at the time the shipment is tendered.
- b. Prior to offering the first loaded shipment under the terms of this special permit, the grantee must provide the leakage pressure test procedure.

- c. Record the essential variables and results of all tests on a leakage pressure test report and submit a summary of the results to the FRA annually.
- d. Identify tank cars comprising 10% of the fleet that will undergo inspection per § 173.31(d)(1)(vi) and submit the list to the FRA. Inspect the rupture disc as required in the HMR every 5th trip and record results of the inspection. If the results are acceptable, the inspection period can be extended to once every 10 trips, but no more than one year.
- e. All frangible disks must be replaced at least annually. The condition requiring replacement prior must be recorded and submitted to the FRA.
- f. The applicant must notify the Federal Railroad Administration of any unusual incident or incidents known to it that occur during the movement of cars shipped under this special permit. FRA may be contacted at:

Federal Railroad Administration
Hazardous Materials Division
RRS-12/Mail Stop 25
1200 New Jersey Avenue, SE
Washington, DC 20590
ATTN: Mark Maday
202-493-6245, FAX: 202-493-6478
Mark.Maday@dot.gov

- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

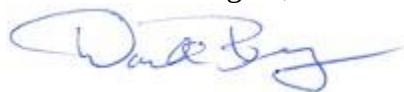
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG